



## POLICE DEPARTMENT

June 14, 2023

Jonathan Darche  
Executive Director  
New York City Civilian Complaint Review Board  
100 Church Street, 10<sup>th</sup> Floor  
New York, NY 10007

Re: CCRB Case No. 202200710 (Incident Date: December 17, 2021) regarding Police Officer Edwin Olivo, Tax No. 970749 (DADS No. 2023-28196)

Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202200710, pertaining to Police Officer Olivo. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that to pursue Charges and Specifications against Police Officer Olivo would be detrimental to the Police Department's disciplinary process.

In this matter, Police Officer Olivo was assigned as the arresting officer of an individual who had been arrested in connection with a dispute at a delicatessen. The arrestee had clearly stated that she did *not* require medical attention when she was being processed at the stationhouse upon her arrival. She subsequently requested a band-aid for her finger to cover a minor cut, which she was provided, along with hand sanitizer, at her request. There was no evidence provided in the CCRB investigation that the arrestee *required* further attention, and the only issue the arrestee raised during her arrest processing was the small cut on the end of her finger. It is also significant to note that the arrestee did not seek any medical attention upon her release from custody.

The Police Commissioner further noted that Police Officer Olivo has had no prior substantiated CCRB allegations, and had not received any formal discipline from the Department. Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and

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the Police Department, the Police Commissioner intends, in the interest of justice, to retain jurisdiction over this matter and take no disciplinary action against Police Officer Olivo.

Yours truly,

A handwritten signature in black ink, appearing to read 'L. Soto', with a stylized flourish extending to the right.

Lourdes Soto  
Deputy Chief  
Commanding Officer  
Police Commissioner's Office



ERIC L. ADAMS  
MAYOR

**CIVILIAN COMPLAINT REVIEW BOARD**  
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ARVA RICE  
INTERIM CHAIR

June 23, 2023

The Honorable Keechant Sewell  
Police Commissioner  
New York City Police  
Department One Police Plaza  
New York, New York 10038

**RE: CCRB vs. PO Edwin Olivo, Tax No. 970749**  
**CCRB Case No. 202200710; (DADS No. 2023-28196)**

Dear Commissioner Sewell:

I am writing in response to the letter from Deputy Chief Lourdes Soto, dated June 14, 2023, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) of your intent to retain jurisdiction over this matter and take no disciplinary action against PO Edwin Olivo. Pursuant to Paragraph 2 of the April 2, 2012, Memorandum of Understanding (hereinafter referred to as the “MOU”) between CCRB and the New York City Police Department. I am responding to Deputy Chief Soto’s notification.

On April 12, 2023, after an in-depth investigation, the CCRB filed the following charges and specifications against PO Olivo:

Police Officer Edwin OLIVO, on or about December 17, 2021, at approximately 2230, while assigned to 043 PCT and on duty, in the confines of the 043 PCT, Bronx County, abused their authority as a member of the New York City Police Department, in that, they did not obtain medical treatment for § 87(2)(b), without sufficient legal authority.  
AG 304-06 PAGE 1 PARA 1 PROHIBITED CONDUCT.

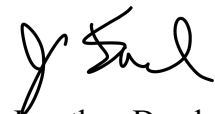
The Administrative Guide Section, 304-06 mandates that Members of Service are prohibited from engaging in conduct prejudicial to good order, efficiency or discipline of the Department. Moreover, on the date of the incident in question, NYPD Patrol Guide Procedure 210-04 mandated that: When a prisoner is in need of medical treatment, members of service are required to request an ambulance to remove the prisoner to the hospital and notify the desk officer on duty.

In this matter, the investigation found that Police Officer Olivo encountered § 87(2)(b) for the first time at the stationhouse after she had already been lodged in a holding cell. Police Officer Olivo introduced himself to § 87(2)(b) as her arresting officer and identified himself as Officer Olivo. Police Officer Olivo and Police Officer Torres moved § 87(2)(b) from the holding cell directly next to the sergeant's desk to a single cell that had a restroom. § 87(2)(b) told Police Officer Olivo and Police Officer Torres that she had a cut on her finger and requested an ambulance. § 87(2)(b) did not seem to be in any kind of physical distress. § 87(2)(b) did not show Police Officer Olivo or Police Officer Torres the cut. Police Officer Olivo did not examine the cut on § 87(2)(b) finger and was not able to provide a description of it. After her request for medical attention, Police Officer Olivo told her they were still working on getting medical attention for her boyfriend.

Body worn camera video captured by Police Officer Olivo showed § 87(2)(b) being moved from the holding cell behind the sergeant's desk to a private holding cell. At 01:05, Police Officer Olivo informs § 87(2)(b) that she is being lodged in another cell. § 87(2)(b) asks if she is being lodged in a different cell because she asked for a band aid. She stated that no one gave her a band aid and that she is bleeding, and she holds up her left hand to show Police Officer Olivo. At 01:13, there is blood visible on the tip of § 87(2)(b) left middle finger. Police Officer Torres tells § 87(2)(b) that he has a band aid that he will give it to her after she is moved to a private cell with a toilet. Based on statements and video evidence obtained, the investigation determined that Police Officer Olivo's response to § 87(2)(b) request for medical attention was not in accordance with NYPD Patrol Guide Procedure 210-04, which requires officers to obtain medical treatment for prisoners in need of medical assistance and notify the desk officer on duty of the request. Police Officer Olivo failed to fulfil either requirement. Police Officer Olivo stated that he thought § 87(2)(b) was playing a game. He further stated that he did not call an ambulance because he did not believe § 87(2)(b) injury were severe and determined that she was not in need of medical treatment. Ultimately, Police Officer Olivo's failure to act was contrary to the spirit of efficiency, good order and discipline of the Department.

While it is recognized that the Police Commissioner is the final arbiter regarding disciplinary actions against members of service, based upon the foregoing, and in the interest of justice, it is respectfully requested that you permit CCRB to pursue Charges and Specifications against Police Officer Olivo in this matter.

Respectfully submitted,



Jonathan Darche  
Executive Director  
NYC Civilian Complaint Review Board



POLICE DEPARTMENT

Jonathan Darche  
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100 Church Street, 10<sup>th</sup> floor  
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Re: CCRB Case No. 202200710 (Incident Date: December 17, 2021) regarding Police Officer Edwin Olivo, Tax No. 970749 (DADS No. 2023-28196)

Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated June 23, 2023 concerning the CCRB case involving Police Officer Edwin Olivo, and nevertheless maintains that it would be detrimental to the Police Department's disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of Police Officer Olivo, for the reasons expressed in my June 14, 2023 letter.

Therefore, the Police Commissioner affirms her decision to exercise Provision Two of the Memorandum of Understanding and now directs that Police Officer Olivo receive no disciplinary action, in connection with this matter.

Yours truly,

Lourdes Soto  
Deputy Chief  
Commanding Officer  
Police Commissioner's Office

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